

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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NAYQUAN NICHOLAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, and POLICE OFFICER
MICHAEL WHITEMAN, POLICE OFFICER
CHRISTOPHER MITCHELL, SERGEANT LISA
MIDWOOD, SERGEANT JOSEPH MCKENNA, and
POLICE OFFICERS JOHN DOES #1-8 (names and
number of whom are unknown at present) and other
unidentified members of the New York City Police
Department,

Defendants.

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11 CIV 1832 (DLC)

AMENDED COMPLAINT

JURY TRIAL DEMANDED

ECF CASE

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff, while lawfully standing on or about 122nd Street and 2nd Avenue, New York, New York, was unlawfully arrested and subjected to excessive force by New York City police officers. Plaintiff was deprived of his constitutional rights when the individually named police officer defendants unlawfully confined plaintiff, and caused the unjustifiable arrest of plaintiff. Further, defendants maliciously prosecuted plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this court by 28 U.S.C. §§ 1331, 1342 (3) and (4) and the aforementioned statutory and constitutional provisions.

3. The plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that gave rise to the federally based claims and causes of action.

VENUE

4. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391, (a), (b) and (c) and § 1402 (b) because the claims arose in this district.

PARTIES

5. Plaintiff Nayquan Nicholas is a citizen of the United States and a resident of the County of New York, City and State of New York.

6. New York City Police Officer Michael Whiteman, Shield # 31800, is and was at all times relevant an officer, employee, and agent of the New York City Police Department.

7. New York City Police Officer Michael Whiteman, Shield # 31800, is being sued in his individual capacity and official capacity.

8. New York City Police Officer Christopher Mitchell, Shield # 20399, is and was at all times relevant an officer, employee, and agent of the New York City Police Department.

9. New York City Police Officer Christopher Mitchell, Shield # 20399, is being sued in his individual capacity and official capacity.

10. New York City Police Sergeant Lisa Midwood, Shield # 3986, is and was at all times relevant an officer, employee, and agent of the New York City Police Department.

11. New York City Police Sergeant Lisa Midwood, Shield # 3986, is being sued in her individual capacity and official capacity.

12. New York City Police Sergeant Joseph McKenna is and was at all times relevant an officer, employee, and agent of the New York City Police Department.

13. New York City Police Sergeant Joseph McKenna, is being sued in his individual capacity and official capacity.

14. New York City Police Officers John Doe #1-8 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

15. Police Officers John Doe #1-8 are being sued in their individual capacity and official capacity.

16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of

the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

18. On April 11, 2010 at approximately 4:00 p.m., plaintiff Nayquan Nicholas was lawfully standing in the vicinity of 122nd Street and 2nd Avenue, New York, New York.

19. Plaintiff Nayquan Nicholas was approached by several police officers.

20. Without any justification, either defendant Police Officer Michael Whiteman or defendant Police Officer Christopher Mitchell, punched plaintiff in the face, and as a result plaintiff sustained bruising to his face.

21. Plaintiff was then arrested without probable cause.

22. Plaintiff was transported to a police precinct for arrest processing.

23. Upon arrival at the precinct, plaintiff was photographed, fingerprinted, and placed in a holding cell.

24. On or about April 12, 2010, plaintiff was transported to Manhattan Central Booking.

25. On or about April 12, 2010, after approximately 24 hours in custody, plaintiff was arraigned in Manhattan Criminal Court and released on his own recognizance.

26. Defendants commenced and continued the prosecution of plaintiff by forwarding false information to the Office of the District Attorney.

27. Thereafter, after approximately six (6) court appearances, all charges against plaintiff were dismissed on November 3, 2010.

28. The individually named defendants who did not physically arrest plaintiff, failed to prevent the arrest and prosecution of plaintiff despite knowledge that the officers lacked probable cause to arrest him and/or initiate a prosecution against him.

29. The individually named defendants who did not personally use excessive force against plaintiff failed to intervene when they observed Officers Michael Whiteman and or Christopher Mitchell using excessive force against plaintiff.

30. The false arrest, false imprisonment, malicious prosecution, and excessive force of plaintiff by the individually named defendant Police Officers caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.

32. The Individually named Defendant Police Officers, who were acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned and

criminally prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The acts and conduct of the defendants constitute false arrest and false imprisonment under the Fourth Amendment to the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

35. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Malicious Prosecution

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.

38. Defendants commenced and continued a criminal proceeding against plaintiff.

39. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

40. The prosecution and criminal proceedings terminated favorably to plaintiff on November 3, 2010

41. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

42. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The use of excessive force by the individually named defendant Police Officers in punching, pushing and striking plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth Amendment to the Constitution of

the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION
Failure to Intervene

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

47. Defendants failed to intervene to prevent the unlawful conduct described herein.

48. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints and was subjected to excessive force.

49. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

52. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to policies, customs and practices wherein New York City Police Officers arrest individuals without probable cause and create false versions of events to justify their actions.

53. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiffs' constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

54. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.

55. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

56. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were unlawfully arrested and prosecuted.

57. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

JURY DEMAND

58. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for relief as follows:

That the jury find and the Court adjudge and decree that plaintiff Nayquan Nicholas shall recover compensatory damages in the sum of \$2,000,000 against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of \$1,000,000 against the individual defendants, jointly and severally.

a. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

b. That the plaintiff have such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
July 5, 2011

By:

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